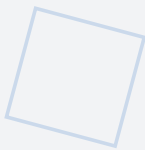


AGIAM-CHARTER

V1.2

Founding Charter — Ethical Commercialization of the Amagi Framework

VERSION 1.2 — JUNE 2026



Founding governance charter of AGIAM Technologies Ltd, the steward of the AMAGI Architectural Class. Establishes the mission, vision, governance bodies, ethical commercialization principles, key-person succession protocol (Shamir 3-of-5), audit obligations, and the relationship between AGIAM and S-APL licensees. Aligned with S-APL v2.0, Framework v2.0, NIPU v1.1, MEM v1.1, Open Specification v1.1, NIST AI RMF Profile v1.1, Master Parameter Sheet v2.0, HARA v1.0, FMEDA v1.0, and Traceability Matrix v1.0.

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Abstract

This document establishes the Founding Charter of AGIAM Technologies — a company dedicated to the ethical commercialization of the Amagi Framework, a reference architecture for high-assurance AI systems.

Version 1.2 update: Resolves cross-document conflicts with S-APL v2.0 identified during architectural review. Removes all references to deleted components (TDF, ICG) from RIT listing. Realigns Derivative Architecture definition to be exclusively invariant-based per S-APL v2.0 Section 5 (no component-count criterion). Explicitly lists non-droppable invariants (INV-001, INV-005, INV-006) per Amagi Framework v2.0. Clarifies that S-APL does not pursue patent protection (open standard + trademark + certification strategy). Realigns certification tier definitions with S-APL v2.0 Section 6 (Tier 1 = Hard Assurance, 6/6 invariants; Tier 2 = Standard Assurance, 6/6 invariants). Introduces Derivative Architecture License Agreement (DALA) as the separate instrument for 5/6 implementations per S-APL v2.0 Section 5. Clarifies royalty model.

Note on Naming (AGIAM): The corporate identifier AGIAM is a fanciful neologism (a non-dictionary word) selected specifically for its strategic and philosophical context. Pronounced A.G.I.Am, it signifies the company's core mission: establishing Architectural, Guaranteed Integrity (A.G.I.) and the ultimate structural reliability of critical systems. This name is declared as a Strategic IP Asset of the Author, ensuring its highest legal protection and preventing its misuse.

AGIAM Technologies does not own the Amagi intellectual property. It is a licensed integrator and certifier, operating under exclusive rights granted by the author. The company exists to bridge open science and regulated industry, ensuring that life-critical and mission-critical systems can achieve structural compliance with frameworks such as the EU AI Act.

This Charter is published under CC BY-NC 4.0 to ensure transparency, attract aligned partners, and prevent misrepresentation of the company's mission.

1. Mission and Vision

1.1 Mission

To enable global deployment of trustworthy AI in high-risk domains by providing licensed, certified, and auditable implementations of the Amagi Framework, thereby securing Architectural, Guaranteed Integrity (A.G.I.) in all licensed systems.

1.2 Vision

A world where AI safety is guaranteed by architecture, not promises — and where AGIAM Technologies is the trusted gateway for structural compliance and uncompromised system reliability.

2. Legal and Architectural Relationship

- **Intellectual Property:** All rights to the Amagi Framework (including Amagi-MEM, Amagi-NIPU, associated principles, and the corporate identifier AGIAM as a strategic reference to Architectural, Guaranteed Integrity and Architectural Sovereignty) remain with the author, Alexey M. Burlai.
- **Company Role:** AGIAM Technologies is a licensee under the Strict Architectural Principle License (S-APL).
- **Open Foundation:** All scientific and technical specifications remain publicly available (for example, on Zenodo) under CC BY-NC 4.0 (or CC0 for medical-domain works).
- **No Ownership Claim:** AGIAM does not claim ownership of the Amagi architecture itself; it holds only the right to implement, certify, and support it under license.
- **Architectural Sovereignty:** The author retains perpetual and irrevocable rights to define what constitutes a Derivative Architecture and to evolve or update the Core Principles.
- **Version 1.2 clarification:** AGIAM Technologies is authorized to issue S-APL licenses for AMAGI-class implementations (6/6 invariants, Tier 1 / Hard Assurance or Tier 2 / Standard Assurance per S-APL v2.0 Section 6) and Derivative Architecture License Agreements (DALA) for reduced-assurance implementations (5/6 invariants). The DALA is a distinct instrument from the S-APL, as specified in S-APL v2.0 Section 5. Amagi-class (6/6) certification under both tiers is issued by AGIAM Technologies; author governance applies to the evolution of the invariants themselves, not to day-to-day certification.
- **No Patent Strategy:** The Amagi Architectural Class is protected through open standard plus trademark plus certification, not through patent enforcement. No patent applications have been filed, and none are planned. This is consistent with the S-APL v2.0 Section 8 intellectual property framework, which relies on copyright (specifications), contractual protection (S-APL Derivative Architecture Clause), trade secret (implementation details under NDA), and trademark (AMAGI certification mark).

3. Core Business Principles

- **Open Science First:** All non-commercial usage remains free and openly accessible via Zenodo.
- **Ethical Commercialization:** AGIAM will not license its architecture for mass surveillance, social scoring, autonomous lethal systems, or other inherently harmful applications.
- **Structural Compliance:** Revenue comes exclusively from S-APL licensing, structural certification, and integration consulting.
- **Regulatory Alignment:** All products and services align with EU AI Act (Annex III), ISO/IEC 42001, and NIST AI Risk Management Framework (RMF).
- **Author Sovereignty:** Alexey M. Burlai retains final decision-making power over S-APL terms and the technical evolution of the architecture.

- **Mission Preservation:** Ethical principles embedded in the Charter cannot be changed without the author's explicit, written consent.

4. Service Offerings

4.1 S-APL Licensing

- Grants rights to implement AMAGI-class architectures (6/6 invariants) in commercial products under Tier 1 (Hard Assurance) or Tier 2 (Standard Assurance) per S-APL v2.0 Section 6.
- Derivative Architectures (5/6 invariants) are licensed under a separate Derivative Architecture License Agreement (DALA), as specified in S-APL v2.0 Section 5.
- Target domains: medical implants, avionics, defense, finance, critical infrastructure.
- Requires: NDA, a technical review (audit), annual compliance review.
- Pricing: tiered according to organization size, risk profile, and trust tier selection (Tier 1 or Tier 2).

Version 1.2 clarification: S-APL licenses cover AMAGI-class implementations (6/6 invariants) under both Tier 1 (Hard Assurance) and Tier 2 (Standard Assurance). Derivative Architecture License Agreements (DALA) cover reduced-assurance implementations (5/6 invariants) as a separate instrument per S-APL v2.0 Section 5. The distinction between S-APL and DALA ensures that the structural guarantee under the S-APL is never diluted by reduced-assurance implementations.

4.2 Amagi Conformity Certification

Three certification pathways:

- **Amagi-Class Certification (Tier 1 / Hard Assurance):** Validates 6/6 invariants with sealed MAG, no emergency termination, CC EAL2+ augmented target. Issued by AGIAM Technologies under S-APL v2.0 Section 6.
- **Amagi-Class Certification (Tier 2 / Standard Assurance):** Validates 6/6 invariants with PQC-OTA MAG update capability, emergency termination available, CC EAL2 target. Issued by AGIAM Technologies under S-APL v2.0 Section 6.
- **Derivative Architecture Certification:** Validates 5/6 invariants with documented waiver. Issued by AGIAM Technologies under a Derivative Architecture License Agreement (DALA), a separate instrument from the S-APL, as specified in S-APL v2.0 Section 5.

Provides full, regulator-ready audit trails and a Certificate of Structural Compliance. Automated compliance testing against reference specifications is part of the certification.

4.3 Reference Implementation Toolkit (RIT)

- Pre-verified RTL/structural modules: SCC, MAG, SHMF, EGW.
- Available to S-APL licensees (6/6 invariants, Tier 1 or Tier 2).

- Derivative Architecture licensees (5/6 invariants under DALA) receive a restricted RIT subset containing only modules relevant to their enforced invariants; the waived-invariant module is not included.
- Includes formal verification test suites and reference integration guides.

Version 1.2 clarification: RIT modules are provided at RTL abstraction level (synthesizable VHDL/Verilog). The current RIT modules are SCC, MAG, SHMF, and EGW. GDSII physical layout files are available under enhanced NDA for ASIC integration. TDF and ICG are no longer part of the architecture and have been removed from the RIT.

4.4 Strategic Integration Consulting

Co-design of AGIAM-compliant SoCs (system-on-chip) in collaboration with chipmakers and OEMs. Emphasis on joint design (CPU, memory, OS) to ensure certification readiness and structural safety.

5. Ethical Guardrails

5.1 Prohibited Use Cases

- Mass surveillance
- Social scoring
- Autonomous weapons
- Consumer behavioral manipulation
- Any applications violating UN Human Rights principles

5.2 Mandatory Requirements for Licensees

- Dual human approval for any critical actions ("high-stakes enabling").
- Complete auditability, using post-quantum cryptographic (PQC) signatures for key governance and control operations.
- Public declaration of Amagi compliance tier (Derivative or Amagi-class) in documentation of any product built on AGIAM architecture.
- Explicit waiver disclosure: For Derivative Architectures, all waived invariants must be publicly documented.
- Annual ethical-use certification, confirming the licensee still abides by prohibited-case restrictions.

5.3 Enforcement Mechanisms

- Immediate license revocation upon verified ethical violations.
- Public disclosure of violations, including details of the breach and the response.

- **Technical enforcement:** domain or component-level blocking through Amagi-Q cryptographic attestation (applies exclusively to Tier 2 / Standard Assurance systems per S-APL v2.0 Section 10.3). For Tier 1 / Hard Assurance systems, where the emergency termination latch is fused off at manufacture per CC EAL2+ certification requirements (S-APL v2.0 Section 10.3), violation of ethical norms results exclusively in legal prosecution, certificate revocation, and public disclosure of the violation.

Audit Fix (v1.2): Section 5.3 has been updated to clarify that Amagi-Q cryptographic attestation enforcement applies exclusively to Tier 2 / Standard Assurance systems, with explicit cross-reference to S-APL v2.0 Section 10.3. Technical enforcement for Tier 2 requires proof of ethical violation and due process per S-APL v2.0 Section 10.2 before activation. For Tier 1 / Hard Assurance systems, enforcement is limited to legal and contractual mechanisms, as the emergency termination latch is fused off at manufacture per CC EAL2+ certification requirements.

6. Definition of Derivative Architecture

6.1 Formal Compliance Test

Version 1.2 update: Aligned with S-APL v2.0 Section 5 and Amagi Framework v2.0. Derivative Architecture definition is now exclusively invariant-based (no component-count criterion). Non-droppable invariants explicitly listed: INV-001, INV-005, INV-006.

A system qualifies as a Derivative Architecture if it enforces five of the six AMAGI invariants (INV-001 through INV-006) as defined in the Amagi Framework v2.0, with one invariant explicitly waived. The definition of Derivative Architecture is exclusively invariant-based; there is no separate component-count or structural-pattern criterion. This aligns with S-APL v2.0 Section 5, which defines Reduced Assurance Mode as an implementation that drops one invariant (except INV-001, INV-005, or INV-006, whose removal fundamentally destroys the security model).

Non-Droppable Invariants

The following three invariants are non-droppable: their removal fundamentally destroys the AMAGI security model, and no Derivative Architecture may waive them:

- **INV-001 (Physical Non-Bypassability):** Without hardware non-bypassability, all other invariants become advisory and can be circumvented by a sufficiently motivated attacker.
- **INV-005 (Complete Mediation):** Without complete mediation, safety-critical commands can bypass the SCC entirely, rendering the TTP Triad ineffective.
- **INV-006 (Complete Audit Integrity):** Without audit integrity, there is no mechanism to verify that any invariant is being maintained in operation, making compliance claims unverifiable.

Note: INV-002 (Irreducible TCB), INV-003 (HW Separation of Control and Cognition), and INV-004 (Controlled Mutability of Critical Policies) may be waived under a Derivative Architecture License Agreement (DALA), subject to documented risk assessment. The waived invariant must be explicitly identified, risk-assessed, and licensed under reduced assurance mode per S-APL v2.0 Section 5.

6.2 Structural Pattern Protection

Any system that reproduces or simulates the following architectural pattern is considered to be extracting the core principle ("Principle Extraction") and therefore requires a valid S-APL license:

The system must execute the sequence of operations, where the result of the previous step is mandatory for the transition to the next, in the following order:

- 1. Context:** Collection of data regarding the system's external or internal state.
- 2. Policy:** Application of predefined governance and safety rules to the collected Context.
- 3. Delay:** Unconditional hardware-enforced temporal pause (programmable timer in clock ticks), ensuring convergence of self-healing memory and deterministic enforcement delay before activation. External policy validation, if any, is handled at the preceding Policy stage (Step 2), not at the Delay stage.
- 4. Activation:** Direct execution of the critical action or command.
- 5. Self-Healing:** Automatic correction or mitigation of risks arising after Activation.
- 6. Audit:** Immutable recording of all previous steps (Context, Policy, Delay, Activation, Self-Healing) for subsequent external or internal analysis.

v1.2 Delay clarification: The Delay step (Step 3) has been updated to clarify that it is an unconditional hardware-enforced temporal pause (programmable timer in clock ticks), ensuring convergence of self-healing memory and deterministic enforcement delay. External policy validation is handled at the Policy stage (Step 2), not at the Delay stage.

6.3 Amagi-Class vs Derivative: Certification Boundaries

Criterion	Amagi-Class (Tier 1 / Tier 2)	Derivative Architecture (DALA)
Invariants Enforced	6/6 (all invariants)	5/6 (one waived, documented)
Assurance Mode	Full assurance (S-APL v2.0)	Reduced assurance (per IAA v1.1 Section 4)
Certification Issuer	AGIAM Technologies (under S-APL)	AGIAM Technologies (under DALA)
Trust Tiers	Tier 1 (Hard Assurance) or Tier 2 (Standard Assurance)	Not applicable (single reduced-assurance tier)
TTP Triad	Full hardware enforcement	Partial (one step may be software-mediated)
MAG Policy	Tier 1: Immutable (OTP/eFuse); Tier 2: PQC-OTA	May include OTA update capability
Audit Trail	Complete (Amagi-Q PQC-signed)	Complete for enforced invariants
Emergency Termination	Tier 1: Fused off; Tier 2: Available (S-APL §10.2)	Available per DALA terms

RIT Access	Full RIT (all modules)	Restricted RIT subset (enforced invariants only)
Use in Safety-Critical Domains	Permitted (medical, avionics, nuclear)	Limited to domain-specific risk acceptance
Public Disclosure	Full compliance tier declaration	Must disclose waived invariant and risk assessment

Table 1: Amagi-Class vs Derivative Architecture certification boundaries

7. Governance, Accountability, and Succession

7.1 Legal Framework

- **Jurisdiction:** English law.
- **Dispute resolution:** Binding international arbitration, held in London.
- **Escalation process:** 1. Notification of issue, 2. Arbitration, 3. Public disclosure of the outcome, 4. Possible license revocation, 5. Additional legal remedies.

7.2 Author Protection Rights

- **Golden Share:** The author retains a veto over any proposed changes to the ethical principles.
- **License Termination:** The author can unilaterally terminate a license if a licensee violates ethical terms.
- **Mission Lock:** Corporate bylaws must encode the Charter's ethical principles.
- **Certification Authority:** The author retains authority over the evolution of the six invariants. AGIAM Technologies is authorized to grant Amagi-class certifications (6/6 invariants, both Tier 1 and Tier 2) and Derivative Architecture certifications (5/6 invariants, under DALA). The author may delegate Amagi-class certification to designated third-party certification bodies as the ecosystem matures.

7.3 Succession Planning

- **Architecture Steward:** If the author becomes unable to govern, a pre-designated technical committee inherits governance rights.
- **Open-Source Fallback:** If stewardship fails, the Amagi architecture reverts under a CC0 license.

8. Relationship to the Open Ecosystem

Asset	License	Access
Amagi Framework specifications	CC BY-NC 4.0	Public (Zenodo)

Medical-domain works	CC0	Public (Zenodo)
S-APL (commercial license)	S-APL v2.0	Licensed only
Reference Implementation Toolkit (full)	S-APL (licensee access)	S-APL licensees only (6/6 invariants)
Reference Implementation Toolkit (restricted subset)	DALA (restricted RIT subset)	Derivative Architecture licensees only (5/6 invariants)
Derivative Architecture License Agreement	DALA (separate instrument per S-APL v2.0 Section 5)	Derivative Architecture licensees only (5/6 invariants)
GDSII physical layout files	Enhanced NDA + S-APL	Licensed under enhanced NDA
Amagi trademark and certification marks	Trademark	Authorized users only
Corporate identifier "AGIAM"	Strategic IP Asset of the Author	Protected

Table 2: Open ecosystem — assets, licenses, and access

9. Transparency, Reporting & Oversight

9.1 Public Reporting

- Annual Licensing Report
- Ethical Audit Summary
- Revenue Reporting

9.2 Technical Transparency

- Maintain reference implementations.
- Publish formal specifications and automated compliance test suites.
- Provide certification criteria in publicly accessible form.

10. Conclusion

AGIAM Technologies is more than a company — it is a guardian of a new architectural paradigm. By separating open scientific innovation from rigorous commercial deployment, it ensures that:

- Researchers can freely explore, test, and extend the Amagi architecture;
- Regulators and auditors have a clear, verifiable basis for compliance;
- Industry can adopt high-assurance AI with structural safety guarantees;
- Humanity is safeguarded not only by promises, but by construction.

Version 1.2 commitment: AGIAM Technologies operates as an IP-first architecture company. S-APL licensing (for AMAGI-class, 6/6 invariants) and DALA agreements (for Derivative Architectures, 5/6 invariants) may include royalty, licensing fee, or service-based revenue models, as specified in separate commercial agreements between AGIAM Technologies and the Licensee. We preserve the integrity of Amagi-class (6/6 invariants) for the highest-assurance applications while providing commercial flexibility through DALA for Derivative Architectures. This is **Capitalism with Conscience**, engineered for the Age of Intelligence.

Appendix A: Legal Status

This Charter is not a corporate incorporation document. It is a public specification of business architecture, published under CC BY-NC 4.0.

Appendix B: Technical Compliance Specifications

B.1 Formal Verification Requirements

All licensed systems must undergo formal verification in accordance with the Amagi Framework specification requirements. Formal verification includes SPIN model checking, HDL line count verification (TCB ≤ 500 lines), trust boundary penetration testing, and audit chain integrity verification.

B.2 Ethical Enforcement Measures

Use of Amagi-Q to enforce domain or component-level restrictions applies to Tier 2 (Standard Assurance) systems only. For Tier 1 systems, ethical enforcement is limited to legal and contractual mechanisms.

- Automated audit-log verification systems.
- Remote compliance monitoring.

Audit Fix (v1.2): Appendix B.2 has been updated to clarify the Tier 1 / Tier 2 enforcement distinction, consistent with the Section 5.3 update. For Tier 2, technical enforcement requires due process per S-APL v2.0 Section 10.2.

Appendix C: Contact, Licensing & Dispute Process

For licensing inquiries, compliance questions, or dispute resolution, contact AGIAM Technologies Ltd through official channels. All licensing is governed by the Strict Architectural Principle License (S-APL) v2.0. Disputes are resolved through binding international arbitration in London, under English law, as specified in Section 7.1.

Contact Type	Channel	Response Time
Licensing inquiries	AGIAM Technologies official channels	15 business days
Compliance questions	AGIAM Technologies official channels	10 business days

Dispute resolution	Binding arbitration (London)	Per arbitration rules
Ethical violation reports	AGIAM Technologies / Author	Immediate acknowledgment

Table 3: Contact and dispute resolution channels

Change Log

Version	Date	Description	Author
1.0	2025-11-26	Initial charter	A.M. Burlai
1.1	2026-05-12	Synchronized with IAA v1.1; added reduced assurance mode; clarified Amagi-class vs Derivative Architecture; Tier 1/Tier 2 enforcement distinction; TTP Delay clarification	A.M. Burlai
1.2	2026-06-09	Removed TDF/ICG from RIT; Derivative Architecture now exclusively invariant-based; added explicit non-droppable invariants (INV-001, INV-005, INV-006); aligned with S-APL v2.0 no-patent strategy; clarified ZKP recommended (not mandatory until reference implementation); DALA introduced; royalty model clarified	A.M. Burlai

Table 4: Document change log